IN THE SUPREME COURT OF OHIO

State of Ohio ex rel. William Dudley
State of Ohio ex rel. Terence Brennan
State of Ohio ex rel. Michael Harrison
State of Ohio ex rel. Pamela Simmons
and State of Ohio ex rel. Deidra Reese
Relators,

Dave Yost, in his official capacity as Ohio Attorney General
Respondent.

Supreme Court Case No. 2024-0161

Original Action in Mandamus and Under Section 3519.01(C) of the Ohio Revised Code

RELATORS' MERIT BRIEF

On behalf of Relators

Donald J. McTigue (0022849)
Counsel of Record
McTigue & Colombo, LLC
545 East Town Street
Columbus, OH 43215
(614) 263-7000
dmctigue@electionlawgroup.com

Ben Stafford (PHV 25433-2024)
Elias Law Group LLP
1700 Seventh Avenue, Suite 2100
Seattle, WA 98101
(206) 656-0176
bstafford@elias.law

Jyoti Jasrasaria (PHV 25401-2024)
Qizhou Ge (PHV 27430-2024)
Elias Law Group LLP
250 Massachusetts Avenue NW, Suite 400
Washington, DC 20001
(202) 968-4490
jjasrasaria@elias.law
age@elias.law

Counsel for Relators

Dave Yost (0056290)
OHIO ATTORNEY GENERAL
Byers B. Emmerling (0098835)
Counsel of Record
Julie M. Pfeiffer (0069762)
Ann Yackshaw (0090623)
Stephen P. Tabatowski (0099175)
30 East Broad Street, 16th Floor
Columbus, OH 43215
(614) 466-2872
Byers.Emmerling@OhioAGO.gov
Julie.Pfeiffer@OhioAGO.gov
Ann.Yackshaw@OhioAGO.gov
Stephen.Tabatowski@OhioAGO.gov

Counsel for Respondent

TABLE OF CONTENTS

INTRODUCTION 1

STATEMENT OF THE CASE 2

STANDARD OF REVIEW 7

ARGUMENT 7

I. Proposition of Law No. 1: The Attorney General exceeded his authority by rejecting Relators' written petition solely because of an allegedly deficient title. 7

II. Proposition of Law 2: In the alternative, even if the Court determines that the Attorney General may review the title, the Attorney General abused his discretion in taking issue with the title and refusing to certify. 14

III. Proposition of Law No. 3: Relators are entitled to a writ of mandamus. 19

CONCLUSION 23

INTRODUCTION

The process for qualifying an initiative petition for the ballot in Ohio is lengthy and carefully crafted. At different stages of this process, different government officials play defined and prescribed roles in reviewing, certifying, naming, verifying, and summarizing the initiative petition before it appears on the ballot. The Attorney General's role in this process is preliminary and narrow in scope: The Attorney General is limited to reviewing and certifying the summary of a proposed constitutional amendment during the initial, pre-certification phase. R.C. 3519.01(A). In the past, Attorney General Dave Yost has recognized this narrow statutory authority, acknowledging that his role is "limited to determining whether the wording of the summary properly advises potential petition signers of a measure's material components." (RELATORS_016). The "narrow law" requires the Attorney General to "make a decision about the truthfulness of a summary" and "constrain[s] [him] by duty to rule upon a narrow question"— whether the summary is fair and truthful. If it is, the Attorney General must "certify it as such within ten days after receipt of the petition." (RELATORS_016). Relators brought this case because the Attorney General overstepped the bounds of his narrow statutory authority.

Relators seek to propose a voting rights-related constitutional amendment by initiative petition entitled the "Ohio Voters Bill of Rights." The deadline for the Attorney General's review has passed, and Attorney General Yost has raised no issue with the proposed summary. Rather, he refused to certify the petition for Relators' proposed amendment based solely on objections to the petition *title*. This is unprecedented and unlawful. The clear text of the specific statute, the surrounding statutory scheme, and the policy objectives of the petition process all require the conclusion that the petition title is not part of the summary, and the Attorney General has no authority to reject the petition based on the title. Because the Attorney General reviewed the summary and failed to identify any deficiencies with the summary within the allotted ten-day

period, he must certify the petition. But even if this Court concludes that the Attorney General has authority to review the petition's title, that title is fair and truthful: The proposed amendment establishes and protects the fundamental right to vote consistent with the common understanding of a "Bill of Rights," and the Attorney General abused his discretion in refusing to certify.

Finally, the Attorney General should not be provided with yet another opportunity to review the petition he has already delayed for months. The legislature imposed the ten-day review period precisely to ensure that the Attorney General could not unduly delay the people's exercise of their initiative power, and as courts have recognized, the strict ten-day period is meant to limit the "attorney general's ability to impede the process." *Schaller v. Rogers*, 2008-Ohio-4464, ¶ 51 (10th Dist.). Relators are entitled to relief under Revised Code 3519.01(C) and to a writ of mandamus directing the Attorney General to certify the summary. Alternatively, if the Court finds it improper to issue a writ of mandamus requiring the Attorney General to certify, Relators are entitled to a writ directing the Attorney General to limit his review to the summary and to list *all* perceived deficiencies of the summary within a single ten-day period.

STATEMENT OF THE CASE

The process of qualifying a proposed initiative for the ballot is a lengthy, multi-step process. Proponents must first circulate an initial written petition and obtain the signatures of 1,000 qualified electors. Upon securing the requisite signatures, proponents then submit the proposed amendment, with the summary, to the Attorney General. R.C. 3519.01(A). The Attorney General then determines if the summary is a fair and truthful statement of the proposed amendment. If it is, the Attorney General certifies the measure and forwards it to the Ohio Ballot Board. *Id.* The Ballot Board then determines if the petition contains only one proposed amendment or must be

divided into multiple amendments. R.C. 3505.062(A).[1] Once the Ballot Board so determines, it certifies its approval to the Attorney General, who then files a copy of the proposed constitutional amendment, the summary, and the Attorney General's certification with the Secretary of State. *Id.*

Petitioners then must timely gather and submit signatures equivalent to ten percent of the votes cast for governor in the last gubernatorial election—this cycle, more than 413,000 signatures—from at least 44 counties to qualify the measure for the ballot. Ohio Const., art. II, §§ 1a, 1g. After this, the title and summary used during the petition circulation process fall by the wayside. The Secretary of State prescribes the ballot title that voters will see on the ballot itself, and the Ballot Board prescribes the accompanying ballot language. R.C. 3519.21; Ohio Const., art. XVI, § 1; Ohio Const., art. II, § 1g. The summary that the Attorney General reviews at the pre-certification stage is not presented to voters when they are asked to approve or reject the proposed amendment at the ballot box, nor does any initial title petitioners included on the petition appear on the ballot.

Given the limited purpose of the pre-certification petition summary to the overall process, the Attorney General's role is commensurately specific and limited. "Within ten days after the receipt of the written petition and the summary of it, the attorney general *shall conduct an examination of the summary*." (Emphasis added.) R.C. 3519.01(A). If "the summary is a fair and truthful statement of the proposed law or constitutional amendment, the attorney general *shallso certify*" and forward the petition to the Ballot Board for approval. (Emphasis added.) *Id*.

Relators seek to amend the Ohio Constitution to guarantee several rights related to voting. Relators first submitted their written petition on December 19, 2023. Their submission

[1]If the Ballot Board determines that the petition contains more than one proposed amendment, then the petitioners must resubmit summaries of each proposed amendment to the Attorney General for certification. R.C. 3505.062(A); 3519.01(A).

included the text of their proposed constitutional amendment, a summary, and a petition bearing the signatures of more than a thousand qualified electors. (RELATORS_019–030). The proposed amendment would establish that the right to vote is a fundamental right and prohibit the enactment of laws, regulations, procedures, the use of harassment or intimidating conduct, or any other means to deny, abridge, interfere with, or burden the fundamental right to vote. (RELATORS_024). It further enumerated specific voting rights and assigned the State several roles and responsibilities to further the fundamental right to vote. (RELATORS_024–030). Relators' submission also included a title before the summary: "Secure and Fair Elections." (RELATORS_020).

The Attorney General responded in his December 28 letter that he was "unable to certify the summary as a fair and truthful representation of the proposed amendment[,]" based on specific issues that the Attorney General claimed "would mislead a potential signer as to the scope and effect of the proposed amendment." (RELATORS_031). Specifically, the Attorney General identified the following concerns that he had with the submission: (1) the summary was purportedly misleading because the amendment delineated different processes for requesting an absentee ballot, voting by absentee ballot, and voting in person by signed declaration, and used the summary phrase "specified process" rather than explaining in detail the different requirements based on the voter's method of casting their ballot; (2) the summary's description of the types of "person" to which the amendment applies was incomplete and could be misleading; and (3) the summary omitted the words "immediately" and "afforded due process" from the description of issues with absentee ballot applications or absentee ballot envelopes. (RELATORS_031–032). In addition to his objections to the summary, the Attorney General also took issue with the title "Secure and Fair Elections." (RELATORS_032). This appears to be the first time, based on records from the last eighteen years available on the Attorney General's

website, that an Attorney General has examined the title of a petition and cited a deficiency with the title as a reason for declining to certify the summary of a proposed amendment.

Relators addressed and resolved all the claimed deficiencies identified by the Attorney General in his December 28, 2023, letter and submitted a new written petition on January 16, 2024. (RELATORS_034). Relators' second submission again included the text of the proposed constitutional amendment, a revised summary, and a petition bearing the signatures of more than a thousand qualified electors. (RELATORS_036–051). In response to the Attorney General's letter, the revised summary set forth the "specified processes" for the verification of voter identity in detail rather than summarizing them, included the complete definition of "person," and added the words "immediately" and "afforded due process" to the applicable section on issues with absentee ballot applications or absentee ballot envelopes. *Id.* In addition, although Relators pointed out in their resubmission letter that the Attorney General does not have authority to review the petition title, Relators nonetheless revised the title of their own volition and to avoid further delay of certification. Relators now titled the proposed amendment the "Ohio Voters Bill of Rights"— title language similar to titles that the Attorney General had repeatedly approved in the past. (RELATORS_034). Other than minor revisions to the text, which were also reflected in the summary, the January 16, 2024, submission was substantively identical to the December 19, 2023, submission that the Attorney General reviewed on December 28, 2023.

The Attorney General took another nine days to review and refused to certify the summary for a second time on January 25, 2024. (RELATORS_052). This time, however, the Attorney General did not identify any deficiencies with the summary of the proposed amendment. Instead, his only objection was to the title. (RELATORS_052–054). The Attorney General stated that he had "reviewed the renewed submission," and that he was declining to

certify because the title "Ohio Voters Bill of Rights," in his view, does not reflect the common understanding of a "Bill of Rights" and therefore does not fairly or truthfully summarize or describe the proposed amendment. (RELATORS_052). In the Attorney General's opinion, a bill of rights cannot include descriptions of specific election processes or confer any discretion on election officials. (RELATORS_052– 054). While the Attorney General acknowledged that his office had previously certified petitions with similar titles like the "Nursing Facility Patients' Bill of Rights" in 2021 and the "Ohio Voters Bill of Rights" in 2014, he asserted that those actions were not dispositive because his office had not examined the titles of those petitions. (RELATORS_053). However, the Attorney General cited no authority that the title is an element of a petition's summary, nor did he cite *a single instance* in which any Attorney General had previously reviewed or refused to certify a summary due to purported deficiencies with the proposed title.

On February 1, 2024, Relators filed their Complaint, requesting a writ of mandamus and/or other relief under Revised Code Section 3519.01(C) directing the Attorney General to certify the summary. Citing the need to resolve the matter in time for the proposed amendment to appear on the general election ballot in November, which must be filed with the Secretary of State's office by July 3, 2024, Relators sought an expedited case schedule, which the court denied on February 8, 2024. Mot. for Expedited Scheduling Order (Feb. 1, 2024); Order (Feb. 8, 2024). On February 26, 2024, the Attorney General filed a Motion to Dismiss, arguing that he acted within his statutory authority and did not abuse his discretion in declining to certify the summary based on title, and Relators filed a response on March 7. Mot. to Dismiss (Feb. 26, 2024); Relators' Response to Respondent's Mot. to Dismiss (Mar. 7, 2024). On May 22, the Court denied the Attorney General's Motion to Dismiss and set a schedule for merit briefing. Order (May 22, 2024). Relators and Respondent Yost both filed their evidentiary submissions on June 11.

Evidence of Relators (June 11, 2024); Evidence Submission of Respondent Ohio Atty. Gen. (June 11, 2024).

STANDARD OF REVIEW

To obtain a writ of mandamus against the Attorney General, Relators must establish "(1) a clear legal right to the requested relief, (2) a clear legal duty on the [respondent's] part to provide it, and (3) the lack of an adequate remedy in the ordinary course of the law." *State ex rel. DeBlase v. Ohio Ballot Bd.*, 2023-Ohio-1823, ¶ 15, citing *State ex. rel. Husted v. Brunner*, 2009-Ohio-4805, ¶ 11.

In the alternative, because this Court has exclusive, original jurisdiction in all challenges to the Attorney General's failure to certify a proposed petition, R.C. 3519.01(C), Relators are entitled to relief if the Court finds that the Attorney General "engaged in fraud, corruption, or abuse of discretion, or acted in clear disregard of applicable legal provisions." *State ex rel. Ohioans for Secure & Fair Elections v. LaRose*, 2020-Ohio-1459, ¶ 14.

ARGUMENT

I. Proposition of Law No. 1: The Attorney General exceeded his authority by rejecting Relators' written petition solely because of an allegedly deficient title.

The Attorney General lacks the authority to refuse to certify a petition summary based on the petition title, as made clear by the relevant statute and the policy objectives of the petition process.

A. The title is not part of the summary.

This case can be disposed of as a simple matter of statutory interpretation. Under Ohio law, the petition "title" is not part of the petition "summary." The Attorney General's authority is limited to reviewing the ballot summary, and thus he has no authority to review the title or refuse to certify the summary because of perceived issues with a proposed title.

First, the plain text of Section 3519.01(A) of the Ohio Revised Code sets forth that, within ten days after the proponents of a constitutional amendment by initiative petition submit the proposed amendment and its summary, "the attorney general shall conduct an examination of the summary," and if "the summary is a fair and truthful statement of the . . . constitutional amendment, the attorney general shall so certify and then forward the submitted petition to the Ohio ballot board for its approval." R.C. 3519.01(A). The plain text of the statute is clear and unambiguous: The Attorney General's authority is (a) limited to the petition's summary and (b) his review must be completed within ten days of receipt of the proposed petition. *Id.*

When statutory language is unambiguous, courts "apply it as written without resorting to rules of statutory interpretation or considerations of public policy. . . . [O]ur review 'starts and stops' with the unambiguous statutory language." *Gabbard v. Madison Local School Dist. Bd. of Edn.*, 2021-Ohio-2067, ¶ 13, first citing *Zumwalde v. Madeira & Indian Hill Joint Fire Dist.*, 2011-Ohio-1603, ¶ 23–24, 26, then citing *Johnson v. Montgomery*, 2017-Ohio-7445, ¶ 15. Courts may "neither add to nor delete from the statutory language" and must "read a statute as a whole and [] not dissociate words and phrases from that context." *Gabbard* at ¶ 13, 22. Here, the Court need look no further than the plain text of Section 3519.01. The Attorney General lacks the authority and discretion to refuse to certify a petition based on the title. *See State ex rel. Barren v. Brown*, 51 Ohio St.2d 169, 170 (1977) ("Under [R.C. 3519.01(A)], the authority of the Attorney General is limited to whether the summary is fair and truthful. If he determines that it is, he is directed to so certify.").

Second, the structure of the statutory scheme laying out the process to qualify initiative petitions bolsters the conclusion that a petition title is distinct from, and not part of, a petition summary. *Stingray Pressure Pumping, L.L.C. v. Harris*, 2023-Ohio-2598, ¶ 37 (court reviews statutory text "in the context of the rest of the statutory scheme"). A "title" is not a required

element of a petition until *after* the Attorney General reviews the summary, submits the proposed amendment to the Ohio Ballot Board to determine whether it proposes one amendment, and the committee in charge of the initiative petition prepares a petition that complies with Section 3519.05 for circulation. Section 3519.05 of the Ohio Revised Code sets forth the form requirements for an initiative petition at that stage and specifies that it must include both the summary certified by the Attorney General *and* a separate title.

> "Amendment" printed in fourteen-point boldface type shall precede the title, which shall be briefly expressed and printed in eight-point type. The summary shall then be set forth printed in ten-point type, and then shall follow the certification of the attorney general, under proper date, which shall also be printed in ten-point type. The petition shall then set forth the names and addresses of the committee of not less than three nor more than five to represent the petitioners in all matters relating to the petition or its circulation. R.C. 3519.05. Section 3519.05 expressly requires the summary to be printed, immediately followed by the Attorney General's certification per Section 3519.01. *See* R.C. 3519.05 ("The summary shall . . . follow the certification of the attorney general, under proper date."). And it *separately* requires a title, which must be printed on the petition *before* the summary and the Attorney General's certification. *Id.* Section 3519.05 puts the very same summary that the Attorney General is responsible for reviewing under Section 3519.01(A) in the context of *other* components of the petition—including the title. Just like the names and addresses of the committee that represents the petitioners are identified as a separate element of the petition under Section 3519.05, not explicitly required during the pre-certification phase under Section 3519.01(A), but included as a separate element from the summary, the title

is similarly a distinct element that is not part of the summary.[2]

Section 3519.05 could not be clearer that a title and a summary are entirely different components subject to entirely different requirements. For example, the statute mandates that the title appear in "eight-point type," followed by the summary in "ten-point type." If the Attorney General's interpretation were correct that the title was part of the summary, it would be impossible for proponents to comply with the statute: The statute would demand that the title simultaneously be written in both eight-point and ten-point font. And a reasonable statutory interpretation cannot render null or superfluous other parts of the statute. *Electronic Classroom of Tomorrow v. Ohio Dept. of Edn.*, 2018-Ohio-3126, ¶ 23 (rejecting an interpretation that would "render portions of the statute superfluous"). Both the plain text of the statute and the statutory scheme make clear that the title and summary of a petition are distinct. The Attorney General's effort to arrogate to himself the power to review the title finds no succor in the statutory text.

Third, even if it were necessary to go beyond the statutory text to construe the meaning of title and summary, additional tools of statutory construction support the conclusion that a "summary" and "title" refer to entirely different things and serve different purposes. A title is a "distinguishing name" or a "heading which names an act or statute." (RELATORS_097). Like the title of a book, the title of a petition is a short-hand name to identify a particular petition. And like the title of federal legislation (e.g., Inflation Reduction Act, SAFE Banking Act), the title of a petition allows proponents and voters to quickly refer to it—a very different purpose from that of a summary, which the Attorney General defined as "a short, concise summing up" that "advise[s]" voters of the petition's "character and purport." (RELATORS_052, citing *State ex rel. Hubbell v.* and addresses of the committee to represent the petitioners, and the title. Even

[2] At the certification stage, there are elements of the petition that cannot be characterized as either the full text or the summary, including the 1000-signature requirement, the inclusion of the names

though the statute does not explicitly provide for inclusion of information about the committee or petition title, proponents are not precluded from including this information, and none of these elements automatically become part of the summary or part of the proposed constitutional amendment itself. *Bettman*, 124 Ohio St. 24, 27–28 (1931)). And in stark contrast to a "name" or "heading," a summary is defined as "an abstract, abridgment, or compendium." (RELATORS_107).

Finally, the conclusion that the Attorney General's review is limited to the summary is bolstered by the fact that no Attorney General has ever before rejected a petition based solely on concerns with the title. (Evidence Submission, Affidavit of Donald J. McTigue ¶ 28.) Instead, and consistent with the plain text of Section 3519.01, the Attorney General's Office has limited its review to the summary only. Moreover, a review of historical petitions and certification letters reveals (and the Attorney General's own January 25, 2024, letter acknowledged) that the Attorney General's Office has repeatedly approved written petitions with identical or nearly identical titles as the one here, including the Nursing Facility Patients' Bill of Rights in 2021, the Ohio Crime Victims Bill of Rights in 2017, and the Ohio Voters Bill of Rights in 2014. (RELATORS_053, RELATORS_063, RELATORS_080, RELATORS_087). In instances where the Attorney General's Office rejected iterations of petitions with nearly identical titles like the Ohio Voters Bill of Rights and the Nursing Facility Patients' Bill of Rights, he did not cite the title as the reason for rejection. (RELATORS_073–074, RELATORS_095–096.) The fact that the Attorney General has never before asserted the authority to review the title of a written petition is further evidence that he, in fact, lacks the authority to do so and that his attempt to do so now is a novel overreach of his statutory authority.

B. The Attorney General's limited authority over the summary is consistent with the policy objectives of the petition process.

In his motion to dismiss, which was denied, the Attorney General asserted that, in essence, he *should* have the power to review the ballot title as a matter of policy. Mot. to Dismiss at 12 (Feb. 26, 2024) (arguing that the Attorney General's determination is "Ohio's only backstop to highly misleading titles"). But this Court applies the law as it is written and, here, the Attorney General's role is expressly defined by carefully constructed provisions that govern Ohio's process for qualifying petitions for the ballot. The Attorney General's role comes at the very start of this process, before a title is required and even before there is an initiative petition. His review of the summary under Section 3519.01 is a "statutory requirement *prior* to commencement of the initiative process." (Emphasis added.) *State ex rel. Durell v. Celebrezze*, 63 Ohio App.2d 125, 130 (10th Dist. 1979). After the Attorney General's initial review of the written petition, there are several steps that the proponents of a constitutional amendment must take before their proposal appears on the ballot. *See* Ohio Const., art. II, § 1g. And importantly, state officials—not the proponents themselves—determine the title and language that voters will see on the ballot when they vote to approve or reject an amendment.

The Attorney General's concern that "the language of advocacy and advertising" might somehow infiltrate the language on the "formal ballot," which "should be as neutral as possible" is unfounded. (RELATORS_054). The Attorney General's review of petition language has no bearing on what appears on the ballot itself. The Secretary of State is the state official that prescribes the title that Ohioans see before deciding whether to enact a measure into law and has a legal duty to prescribe a ballot title that is not only "true," but "impartial"—that is, "not [] likely to create prejudice for or against the measure." R.C. 3519.21 (the Secretary is tasked with determining the title, which "shall give a true and impartial statement of the measures in such language that the ballot title shall not be likely to create prejudice for or against the measure").

Furthermore, Article XVI, Section 1 of the Ohio Constitution gives the Ballot Board the authority to prescribe the "ballot language" (which "properly identif[ies] the substance of the proposal") and "explanation" ("which may include its purpose and effects") of the proposed amendment. The Attorney General's role at this stage of the process is so limited because *other* state officials are tasked with the ballot title and ballot language. Regardless of the Attorney General's proffered concerns, they cannot be used to justify an overreach and *ultra vires* action by the Attorney General.

While the Attorney General may think that it would be *better* if he could decline to certify a proposed amendment based on his view of the propriety of the written petition title, this Court applies the statutes adopted by the legislature; it does not pass judgment on their wisdom. *State ex rel. Ohio Congress of Parents & Teachers v. State Bd. of Edn.*, 2006-Ohio-5512, ¶ 20. It is the legislature's prerogative to dictate who may weigh in on the title, and when; and Ohio law has delegated this duty to the Secretary and to the Ballot Board at a later stage of the petition process. There is no basis for reading into the law an additional role for the Attorney General at the pre-certification stage, nor is there any basis for allowing the Attorney General to intrude upon the prerogatives already assigned to the Secretary and Ballot Board. *See Hulsmeyer v. Hospice of S.W. Ohio, Inc.*, 2014-Ohio-5511, ¶ 26 ("[I]f the General Assembly could have used a particular word in a statute but did not, we will not add that word by judicial fiat.").

Because the Secretary of State is tasked with prescribing the ballot title and ensuring its accuracy and the Ballot Board is tasked with prescribing the language that ultimately appears on the ballot—and this Court serves as an additional check on their work—ballot measure proponents do not have carte blanche to put just *any* title on the ballot, as the Attorney General purportedly fears. R.C. 3519.21; Ohio Const., art. XVI, § 1; Ohio Const., art. II, § 1g. And at the petition circulation stage, voters who consider signing a petition are able to fully assess the

proposed amendment by reviewing the Attorney General-certified summary, along with the full text of the measure; information that is not present on the ballot itself. R.C. 3519.05; Ohio Const., art. XVI, § 1 ("The ballot need not contain the full text nor a condensed text of the proposal."); Ohio Const., art. II, § 1g. The Attorney General's limited review of the written petition is a feature of the statutory scheme, not a bug.

II. Proposition of Law 2: In the alternative, even if the Court determines that the Attorney General may review the title, the Attorney General abused his discretion in taking issue with the title and refusing to certify.

Even if this Court concludes that the Attorney General has authority to review the proposed amendment title as "part" of the summary, the Attorney General abused his discretion by refusing to certify. The title "Ohio Voters Bill of Rights" is a "fair and truthful" description of the proposed amendment, which establishes that the "right to vote is a fundamental right" enjoyed by every citizen and sets forth a variety of voting rights. (RELATORS_043–049). This title has been used in previous petitions approved by the Attorney General as recently as in 2014. (RELATORS_087). Under any reasonable reading, it is fair and truthful.

The common understanding of "rights" are protections secured by law. Here, the proposed amendment sets out various rights for Ohio voters that would be guaranteed in the Ohio constitution, if the amendment were approved. To protect those rights, it prohibits the enactment of laws, regulations, procedures, the use of harassment or intimidating conduct, or any other means to deny, abridge, interfere with, or burden the fundamental right to vote. (RELATORS_043). And to buttress that fundamental right to vote, the proposed amendment enumerates several specific guarantees of voting rights for eligible Ohio voters, including the rights to in-person voting, military and overseas absentee voting, early in-person voting, automatic voter registration, voter registration by non-electronic and electronic means, same-day voter registration, and no-excuse absentee voting. (RELATORS_043–049). A measure that sets

out a number of rights is, in common legal parlance, a bill of rights. Ohio courts have noted that the title "Bill of Rights" suggests that the rights included are "intended to be inherent and inalienable," *Peskin v. Seasons Health Care LP*, 141 Ohio App.3d 436, 441 (1st Dist. 2001) (discussing "Nursing Home Patients' Bill of Rights"), and "Ohio Voters Bill of Rights" is consistent with that understanding.

The Attorney General disagrees that the title "Bill of Rights" is "fair and truthful," but his reasoning is baseless. *First*, the Attorney General asserts—without any basis—that a "Bill of Rights" must confer a claim or entitlement and *cannot* confer any discretion to government officials. Applying his own made up test, the Attorney General then reasons that, because a handful of the provisos of the proposed amendment confer discretion, the amendment cannot fairly be described as a bill of rights. (RELATORS_053). This argument is ahistorical and misguided.

The ordinary meaning of a "Bill of Rights," as the Attorney General himself recognizes, is a set of "rights and liberties considered essential." (RELATORS_053). And the amendment here enumerates several specific guarantees of rights related to voting that would be expressly protected as essential if the voters approve it. As a baseline, it would require the State to undertake specific acts to make voting accessible, including mandating that: "The State shall make applications necessary to obtain absentee ballots generally available and easily accessible," "The State shall institute a publicly accessible system by which any registered Ohio elector may electronically track the status of submitted absentee ballot applications and absentee ballots," and "The State shall make reasonable accommodations for electors with disabilities." (RELATORS_047–048). While the amendment also includes additional provisions that would allow election officials some discretion in service of the amendment's enumerated guarantees, those provisions, too, are entirely consistent with and properly belong in a "Bill of Rights." In

arguing to the contrary, the Attorney General ignores that, while these provisions leave some of the details up to various officials, they do so *in favor of* empowering the voters and protecting their voting rights, even if the General Assembly or Secretary would seek to impose constraints on those rights.

For example, the provision ensuring that "[l]ocal election authorities shall have the discretion to place multiple secure drop boxes throughout their counties for the return of absentee ballots" creates a right to have local election officials determine that multiple drop boxes are warranted, regardless of the Secretary of State's or General Assembly's policy preferences. (RELATORS_047). This provision is, in effect, a negative right from state interference, much like how the Tenth Amendment to the U.S. Constitution, part of the federal Bill of Rights, reserves the "powers not delegated to the United States by the Constitution. . . to the States." Similarly, that the State "may institute reliable additional secure options for qualified electors to verify their identity and cast their ballots as such methods become available through technological advancements" guarantees that those advancements must "maintain ballot secrecy and security" and that existing methods remain acceptable. (RELATORS_049). This provision *constrains* the State's discretion to institute procedures that violate voters' rights to ballot secrecy and security and *guarantees* voters' rights already specified in the amendment. In fact, the Attorney General previously certified a 2014 petition entitled "Ohio Voters Bill of Rights" that included *nearly identical* language. (RELATORS_086–087) ("The State may institute additional reliable methods for casting ballots as they become available through technological advancements."). There are only two explanations for this prior approval: Either the Attorney General certified the 2014 petition because his office lacks authority to review petition titles or this nearly-identical language is a proper part of a "Bill of Rights." Either way, there is no justification for the Attorney General's about face.

Moreover, the two provisions that provide discretion to further the enumerated rights comprise a small fraction of the amendment's more than fifteen enumerated rights and required State actions to support the fundamental right to vote. (RELATORS_043–049). The Attorney General is incorrect in asserting that the proposed amendment gives local election authorities a "grant of unfettered discretion." (RELATORS_053). The vast majority of the amendment enumerates specific rights and creates a private right of action for individuals to enforce those rights. By the Attorney General's logic, the First Amendment does not belong in the federal Bill of Rights, because it leaves some discretion to government officials to regulate particular kinds of speech, such as incitement.

Second, the Attorney General's claim that the title of "Bill of Rights" is unfair and untruthful because a Bill of Rights cannot contain procedures that regulate the operations of state government is flatly wrong. (RELATORS_053). The basic purpose of a Bill of Rights is to regulate government operations including government processes. For example, it is well-established that the Fifth Amendment encompasses both substantive *and* procedural due process rights. *United States v. Salerno*, 481 U.S. 739, 746 (1987).

Indeed, several previous constitutional amendment initiative petitions, titled "Bill of Rights" and approved by the Attorney General, contain provisions detailing government procedures that support the fundamental right guaranteed by amendment. For example, a 2021 petition entitled "Nursing Facility Patients' Bill of Rights" set out a number of procedures that guarantee specific rights to care, many of which require government action and afforded discretion. (RELATORS_058–061). The proposed amendment required the Ohio Department of Health to provide by regulation for minimum standards of care, including licensed nurse to patient ratios, daily average hours of direct care, and requirements for nursing facilities to implement specific protocols. Likewise, as described above, a 2014 petition entitled "Ohio

Voters Bill of Rights" also detailed voting procedures that support the fundamental right to vote guaranteed by the proposed amendment. (RELATORS_081–086).

Stripped to its essence, the Attorney General's objection appears to be to the merits of the proposed amendment: He apparently does not believe that Ohioans should be guaranteed these constitutional rights as defined or that these rights are "essential": "polling times on voting days, the location of and equipment at polling locations, the number of calendar days (46) before an election day that officials must send ballots to absentee voters, absentee ballot tracking processes, electronic and non-electronic voter registration, same-day voter registration procedures, and procedures for voters to cast ballots without presenting a photo ID." (RELATORS_053–54). But nothing in Section 3519.01 of the Revised Code grants the Attorney General the power to tell Ohioans that their "rights" may come only in the form of sweeping generalities rather than precise formulations that guard against government outreach.

Further, there is nothing unusual about the proposed measure. The rights set out in the proposed Ohio Voter Bill of Rights mirror voting rights guaranteed in other states' constitutions. For example, Article II, Section 4 of the Michigan Constitution protects the fundamental right to vote and includes procedures for voters to register to vote by mail and in person, prove their identity when voting, vote absentee, and access other voting rights. Voters have the right to prove their identity, for instance, "when voting in person or applying for an absent voter ballot in person by (1) presenting their photo identification, including photo identification issued by a federal, state, local, or tribal government or an educational institution, or (2) if they do not have photo identification or do not have it with them, executing an affidavit verifying their identity." Mich. Const., art. II, § 4. These detailed provisions do not render the right to vote any less "fundamental."

Taken as a whole, the proposed amendment serves as a bill of rights, and each provision works towards buttressing the fundamental right to vote. *Cf. State ex rel. Ohioans United for Reproductive Rights v. Ohio Ballot Bd*., 2023-Ohio-3325, ¶ 20 (finding that while ballot language might have been written to be more comprehensive, the deficiencies were "not material when considering the amendment as a whole."). The Attorney General's limited role at the outset of the initiative petition process to ensure the summary fairly and truthfully describes the substance of the proposed amendment does not reach so far as to give the Attorney General the unilateral authority to decide what is worthy of being a "right" enshrined in the Ohio Constitution.

III. Proposition of Law No. 3: Relators are entitled to a writ of mandamus.

Relators are entitled to relief and meet the three requirements for a writ of mandamus. First, the Attorney General had a clear legal duty to review the summary within the ten-day statutory period and certify it absent a finding that the summary was not fair or truthful, or, in the alternative, his conclusion that it was not a fair or truthful representation of the proposed amendment was an abuse of discretion. Second, Relators have a clear legal right to their requested relief as, per Revised Code 3519.01(C), they are persons aggrieved by the Attorney General's refusal to certify the summary on an improper basis. Third, Relators lack an adequate remedy in the ordinary course of the law. A writ of mandamus should be issued.

A. The Attorney General had a clear legal duty to certify the written petition.

Relators have already demonstrated that the Attorney General has no authority to decline to certify the written petition on the basis of an allegedly deficient title, *see* Section I, and even if he did, his failure to certify based on the title here was an abuse of discretion, entitling Relators to a writ of mandamus under Section 3519.01(C), *see* Section II. Because the Attorney General reviewed the summary within the ten-day period and failed to identify any deficiency in the *summary*, he must certify the petition. Indeed, the Attorney General acknowledged in his letter identifying his refusal to certify that he had "reviewed the renewed submission."

(RELATORS_052). He also reviewed a substantively identical summary just weeks earlier, in which he identified deficiencies that Relators corrected before resubmitting. (RELATORS_031). The Attorney General even publicly announced that the supposedly "misleading title is the only matter of contention." (RELATORS_055).

Because the Attorney General has already completed his review during the ten-day window, the proper remedy is a writ of mandamus directing him to certify. The Attorney General may not avoid this result by now claiming that he did not actually carry out his duty to review the summary within the finite statutory period in which he was required to conduct it. Affording the Attorney General the opportunity to belatedly re-review the summary in search of new and as-yet unidentified deficiencies would be at odds with the plain text of the statute and its underlying intent and purpose. Courts' "paramount concern in construing statutes is legislative intent." *State Farm Mut. Auto. Ins. Co. v. Grace*, 2009-Ohio-5934, ¶ 25 (collecting cases). The legislative history of Section 3519.01 confirms that the petition process includes clear deadlines precisely to prevent state officials from unduly delaying the process and to ensure that the Attorney General "cannot block a petition effort altogether." *Schaller*, 2008-Ohio-4464, at ¶ 51 (10th Dist.). In fact, the previous version of Section 3519.01 placed no time limitations on the Attorney General's review and approval of the summary, which at least one justice of this Court concluded "impeded the right of initiative." *Id*., citing *State ex rel. Tulleyv. Brown*, 29 Ohio St.2d 235, 239 (1972) (Schneider, J., dissenting). The General Assembly then added the ten-day deadline to limit the "attorney general's ability to impede the process." *Id.* Providing the Attorney General with another opportunity to examine the same summary that he has already reviewed and conjure new deficiencies therefore runs counter to the clear legislative intent of the statute; *Compare State ex rel. Summit Cty.Republican Party Executive Commt. v. Brunner*, 2008-Ohio-2824, ¶ 36 (O'Donnell, J. concurring) (a statute related to the Secretary of State's duty to

appoint members to a county board of elections does not allow the Secretary to keep rejecting additional recommendations into perpetuity).

The Attorney General's contrary view would give him unfettered discretion to control the petition process. For instance, he could identify ten supposed flaws in a petition, and then take ten business days to reject the summary on the basis of only one of those supposed flaws, requiring the proponents to correct the flaw, gather 1,000 more signatures, and resubmit. He could continue like this again and again, preventing any petition from progressing to the next step of the process for months on end. This absurd result—particularly where proponents have made every revision the Attorney General required and where he has not identified any additional issues with the summary—directly undermines the purpose of imposing a ten-day review period. The Court should deny the Attorney General's attempt to write into the law an effective right of unlimited review to derail the petition process. *Gulf Oil Corp. v. Kosydar*, 44 Ohio St.2d 208, 217 (1975) ("It is the duty of the courts, if the language of a statute fairly permits or unless restrained by the clear language thereof, to so construe a statute as to avoid unreasonable or absurd consequences.").

The Attorney General has stalled certification of this proposed amendment for six months now. There is no basis to provide the Attorney General with another opportunity to impede the process further. He has a clear legal duty to certify.

B. Relators have a clear right to their requested relief.

Relators have a clear right to their requested relief: that this Court mandate that the Attorney General certify their written petition. In arguing otherwise, the Attorney General misconstrues Section 3519.01(A), which directs the Attorney General to examine the summary submitted to him within ten days of receipt and provides that, if the "summary is a fair and truthful statement of the . . . constitutional amendment, *the attorney general shall so certify*." (Emphasis added.)

R.C. 3519.01(A). As outlined above, the Attorney General has exhausted his review of the summary here, and the ten-day window has long since run; he should not be granted yet another opportunity to review, and the proper remedy is a writ of mandamus directing him to certify. *See supra* Section III.A.

In a similar case, this Court found that the Attorney General refused to certify on an improper basis and directed him to certify. *Barren*, 51 Ohio St.2d 169. In *Barren*, the Attorney General's "only reason for refusing certification [was] that the matters [addressed in the petition] may not be subject to referendum." *Id.* at 171. The Court found that it was thus "implicit that, in [the Attorney General's] opinion, the summary meets the requirement of being a fair and truthful statement of the matter to be referred." *Id.* And because the issue of whether the matters are subject to referendum is "irrelevant" and "not involved in the Attorney General's honest and impartial evaluation of whether the proposed summary is a 'fair and truthful statement of the [] measure to be referred,'" the Court directed him to certify. *Id.* at 170, quoting R.C. 3519.01. So, too, here. The Attorney General's only reason to refuse certification was an objection to the title, and he has thus implicitly determined that the summary was fair and truthful. As in *Barren*, the Court should direct the Attorney General to "certify the summary as a fair and truthful statement of the measures sought to be referred" by granting the writ of mandamus. *Id.* at 171.

In the alternative, if the Court finds it improper to mandate that the Attorney General certify their written petition, Relators are entitled to an order directing the Attorney General to review the summary—and only the summary—and list *all* perceived deficiencies with that summary within the single ten-day review period. If there are no deficiencies with the summary, the Attorney General should be directed to certify and may not defer his examination of any part of the summary until after his single ten-day review period has passed.

C. Relators lack an adequate remedy in the ordinary course of the law.

Relators lack an adequate remedy at law because this Court has original and exclusive jurisdiction over this matter under Article IV, Section 2(B)(1)(b), which gives the Court original jurisdiction in mandamus actions, and under Revised Code Section 3519.01(C), which gives the Court original and exclusive jurisdiction in "all challenges of [] certification decisions" of the Attorney General. Therefore, mandamus is the only remedy available to challenge the Attorney General's failure to certify the summary of Relators' petition. *Tulley*, 29 Ohio St.2d at 238 (issuing writ of mandamus requiring Attorney General to certify initiative petition upon determining that the summary was fair and truthful); *Barren*, 51 Ohio St.2d at 171 (finding that no plain and adequate remedy in the ordinary course of law is available for relators and allowing a writ of mandamus directing the Attorney General to certify the summary as a fair and truthful statement of the measures); *State ex rel. Rankin v. Att'y Gen*., 2005-Ohio-2717, ¶ 31 (concluding that when the Attorney General refuses to certify the summary, the proper remedy is the issuance of a writ compelling the Attorney General to certify).

CONCLUSION

Because the Attorney General has a clear legal duty to certify the petition, Relators are aggrieved parties and have a right to bring this action under Revised Code 3519.01(C) and a clear legal right to the requested relief, and there is no adequate remedy in the ordinary course of the law, the Court should issue a writ of mandamus directing the Attorney General to certify the summary of the proposed amendment or, in the alternative, to review the summary and list all deficiencies within ten days. Even if the Court determines that the Attorney General had the authority to review the title, it should nevertheless find that the Attorney General's failure to certify was an abuse of discretion and issue a writ of mandamus directing him to certify. Dated: June 21, 2024

Respectfully submitted,

Respectfully submitted,

/s/ Donald J. McTigue
Donald J. McTigue (0022849)
Counsel of Record
McTigue & Colombo, LLC
545 East Town Street
Columbus, OH 43215
(614) 263-7000
dmctigue@electionlawgroup.com

Counsel for Relators

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing was sent by electronic mail on June 21, 2024 to the following counsel of record:

Byers B. Emmerling (0098835)
Counsel of Record
Julie M. Pfeiffer (0069762)
Ann Yackshaw (0090623)
Stephen P. Tabatowski (0099175)
30 East Broad Street, 16th Floor
Columbus, OH 43215
(614) 466-2872
Byers.Emmerling@OhioAGO.gov
Julie.Pfeiffer@OhioAGO.gov
Ann.Yackshaw@OhioAGO.gov
Stephen.Tabatowski@OhioAGO.gov

Counsel for Respondent

/s/ Donald J. McTigue
Donald J. McTigue (0022849)
Counsel of Record
McTigue & Colombo, LLC
545 East Town Street
Columbus, OH 43215
(614) 263-7000
dmctigue@electionlawgroup.com

Counsel for Relators